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STUDY NOTES

CCS (Conduct) Rules, 1964

Central Civil Services (Conduct) Rules, 1964

Corrected, Updated & GID-Enriched Edition

Updated up to all amendments in force

For LDCE — Inspector of Posts & PS Group 'B' Examinations

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Disclaimer & Note on Currency of Material

This study note has been prepared exclusively from an examination point of view for the candidates of LDCE — Inspector of Posts (IP) and PS Group 'B' examinations. Every effort has been made to incorporate all amendments to the Central Civil Services (Conduct) Rules, 1964 issued by the Department of Personnel and Training (DoP&T), including the Second and Third Amendment Rules, 2014 and the amendment to Rule 13 vide G.S.R. 531(E) dated 29.07.2019, together with the principal Government of India Decisions (GIDs / GOI Decisions) commonly tested in postal department examinations.

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Rule 1 — Short Title, Commencement and Application

Sub-rule (1) — Short title

These rules may be called the Central Civil Services (Conduct) Rules, 1964.

Sub-rule (2) — Commencement

They shall come into force **at once from 12th December, 1964.**

Sub-rule (3) — Application

These rules shall apply to every person appointed to a civil service or post (including a civilian in Defence Service) in connection with the affairs of the Union.

Non-application of the Rules

These rules shall NOT apply to —

- (a) A Railway servant;
- (b) A member of an All India Service;
- (c) A holder of any post in respect of which the President has, by a general or special order, directed that these rules shall not apply.

Partial exemption for low-paid non-gazetted staff (Second proviso)

Provided further that **Rules 4, 6, 7, 12, 14, sub-rule (3) of Rule 15, Rule 16, sub-rules (1), (2) and (3) of Rule 18, Rules 19, 20 and 21** shall not apply to any Government servant who draws a pay which does **not exceed ₹500 per mensem** and holds a non-gazetted post in any of the following establishments owned or managed by the Government —

- (i) Ports, docks, wharves or jetties;
- (ii) Defence installations except training establishments;
- (iii) Public works establishments, in so far as they relate to work-charged staff;
- (iv) Irrigation and electric power establishments;
- (v) Mines [as defined in the Mines Act, 1952];
- (vi) Factories [as defined in the Factories Act, 1948];
- (vii) Field units of the Central Tractor Organisation employing workmen governed by labour laws.

GOVERNMENT DECISIONS / IMPORTANT GIDS

- ▶ Although the salary ceiling of ₹500 p.m. appears archaic today, the proviso has never been repealed; it is therefore quoted verbatim in the rule book and is a frequent test-question for postal examinations.
- ▶ Gramin Dak Sevaks (GDS) are NOT Government servants and are governed by the Gramin Dak Sevaks (Conduct & Engagement) Rules, 2020 — they are therefore outside the CCS (Conduct) Rules, 1964.

Rule 2 — Definitions

In these rules, unless the context otherwise requires —

(a) “The Government”

means the Central Government.

(b) “Government servant”

means any person appointed by Government to any civil service or post in connection with the affairs of the Union and includes a civilian in a Defence Service.

Explanation — A Government servant whose services are placed at the disposal of a company, corporation, organisation or local authority by the Central Government continues to be a Government servant for the purposes of these rules, notwithstanding that his salary is drawn from a source other than the Consolidated Fund of India.

(c) “Members of family”

in relation to a Government servant, includes —

- The **wife or husband** of the Government servant, whether residing with the Government servant or not — but does **not include** a wife or husband, as the case may be, separated from the Government servant by a decree or order of a competent court;
- The **son or daughter or step-son or step-daughter** of the Government servant and **wholly dependent** on him — but does not include a child or step-child who is no longer in any way dependent on the Government servant or of whose custody the Government servant has been deprived by or under any law;
- Any other person related, whether by blood or marriage, to the Government servant or to the Government servant's wife or husband, and **wholly dependent** on the Government servant.

GOVERNMENT DECISIONS / IMPORTANT GIDs

GID under Rule 4 — DoP&T O.M. No. 11013/4/2011-Estt.(A) :

- ▶ For the purposes of Rule 4(1) and 4(3), the expression "members of family" shall include the wife or husband, son or daughter, parents, brothers or sisters or any person related to any of them by blood or marriage — whether or not they are dependent on the Government servant. This expanded meaning is restricted to Rule 4 alone.
- ▶ Rules where the definition of "members of family" applies **equally to the Government servant and the family**: **Rule 13 (Gifts)** and **Rule 16 (Investment, lending & borrowing)**. In other rules, family members are subjected to a more liberal regime.

Rule 3 — General

Sub-rule (1) — Duties of every Government servant

Every Government servant shall at all times —

- (i) maintain absolute integrity;
- (ii) maintain devotion to duty; and
- (iii) do nothing which is unbecoming of a Government servant.

LEGISLATIVE AMENDMENT NOTE

Inserted vide CCS (Conduct) (Third Amendment) Rules, 2014 — Notification dated 27.11.2014 [F.No. 11013/6/2014-Estt.A] — clauses (iv) to (xxi):

- (iv) commit himself to and uphold the supremacy of the Constitution and democratic values;
- (v) defend and uphold the sovereignty and integrity of India, the security of the State, public order, decency and morality;
- (vi) maintain high ethical standards and honesty;
- (vii) maintain political neutrality;
- (viii) promote the principles of merit, fairness and impartiality in the discharge of duties;
- (ix) maintain accountability and transparency;
- (x) maintain responsiveness to the public, particularly to the weaker section;
- (xi) maintain courtesy and good behaviour with the public;
- (xii) take decisions solely in public interest and use or cause to use public resources efficiently, effectively and economically;

- (xiii) declare any private interests relating to his public duties and take steps to resolve any conflicts in a way that protects the public interest;
- (xiv) not place himself under any financial or other obligations to any individual or organisation which may influence him in the performance of his official duties;
- (xv) not misuse his position as civil servant and not take decisions in order to derive financial or material benefits for himself, his family or his friends;
- (xvi) make choices, take decisions and make recommendations on merit alone;
- (xvii) act with fairness and impartiality and not discriminate against anyone, particularly the poor and the under-privileged sections of society;
- (xviii) refrain from doing anything which is or may be contrary to any law, rules, regulations and established practices;
- (xix) maintain discipline in the discharge of his duties and be liable to implement the lawful orders duly communicated to him;
- (xx) maintain confidentiality in the performance of his official duties as required by any laws for the time being in force, particularly with regard to information, disclosure of which may prejudicially affect the sovereignty and integrity of India, the security of the State, strategic, scientific or economic interests of the State, friendly relations with foreign countries or lead to incitement of an offence or illegal or unlawful gain to any person;
- (xxi) perform and discharge his duties with the highest degree of professionalism and dedication to the best of his abilities.

Sub-rule (2) — Supervisory and best-judgment duties

- (i) Every Government servant holding a supervisory post shall take all possible steps to ensure the integrity and devotion to duty of all Government servants for the time being under his control and authority;
- (ii) No Government servant shall, in the performance of his official duties, or in the exercise of powers conferred on him, act otherwise than in his best judgment except when he is acting under the direction of his official superior;
- (iii) The direction of the official superior shall ordinarily be in writing. Oral direction to subordinates shall be avoided, as far as possible. Where the issue of oral direction becomes unavoidable, the official superior shall confirm it in writing immediately thereafter;

- (iv) A Government servant who has received oral direction from his official superior shall seek confirmation of the same in writing as early as possible, whereupon it shall be the duty of the official superior to confirm the direction in writing.

Explanations to Rule 3

Explanation I — A Government servant who habitually fails to perform the task assigned to him within the time set for the purpose and with the quality of performance expected of him shall be deemed to be lacking in devotion to duty within the meaning of clause (ii) of sub-rule (1).

Explanation II — Nothing in clause (ii) of sub-rule (2) shall be construed as empowering a Government servant to evade his responsibilities by seeking instructions from, or approval of, a superior officer or authority when such instructions are not necessary under the scheme of distribution of powers and responsibilities.

GOVERNMENT DECISIONS / IMPORTANT GIDS

- ▶ **Duty of supervisory officers** — It is the duty of the superior officer who has given an oral direction to confirm it in writing when such confirmation is sought by his subordinate. It is not open to the superior to refuse confirmation.
- ▶ A Government servant who misuses his official position, or abets and connives at improper and illegal acts, renders himself liable for disciplinary action for violation of Rule 3.
- ▶ Joint representations by Government servants in matters of common interest are not in order; representations should be made individually through proper channel.

Rule 3-A — Promptness and Courtesy

No Government servant shall —

- (a) in the performance of his official duties, act in a discourteous manner;
- (b) in his official dealings with the public or otherwise adopt dilatory tactics or wilfully cause delays in disposal of the work assigned to him.

Rule 3-B — Observance of Government's Policies

Every Government servant shall, at all times —

- (i) act in accordance with the Government's policies regarding age of marriage, preservation of environment, protection of wildlife and cultural heritage;
- (ii) observe the Government's policies regarding prevention of crime against women.

Rule 3-C — Prohibition of Sexual Harassment of Working Women

- (1) No Government servant shall indulge in any act of sexual harassment of any woman at any work place.
- (2) Every Government servant who is in charge of a work place shall take appropriate steps to prevent sexual harassment to any woman at the work place.

Definition of "Sexual Harassment" and "Work Place" [inserted vide GSR 823(E) dated 19.11.2014]

"**Sexual harassment**" includes any one or more of the following unwelcome acts or behaviour (whether directly or by implication), namely — (i) physical contact and advances; (ii) a demand or request for sexual favours; (iii) making sexually coloured remarks; (iv) showing pornography; or (v) any other unwelcome physical, verbal or non-verbal conduct of a sexual nature.

"**Work place**" has been expansively defined to include — Government offices and their establishments; hospitals or nursing homes; sports institutes/stadiums/sports complexes; any place visited by the employee arising out of or during the course of employment, including the transportation provided; and a dwelling place or house.

Aligned legislative reference

The substantive law on prevention of sexual harassment is the **Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013** and the Rules, 2013 made thereunder. The Act traces back to the directions of the Supreme Court in *Vishaka v. State of Rajasthan*, AIR 1997 SC 3011.

GOVERNMENT DECISIONS / IMPORTANT GUIDES

- ▶ Every Department must constitute an **Internal Complaints Committee (ICC)** headed by a woman officer, with at least one external woman member from an NGO, for inquiry into complaints of sexual harassment.
- ▶ Findings/recommendations of the ICC are deemed to be an inquiry report under Rule 14 of the CCS (CCA) Rules, 1965; no separate inquiry is required where the ICC has held an inquiry in accordance with the prescribed procedure.
- ▶ The protective scope of the 2013 Act and Rule 3-C extends to all women, including outsiders, visitors and trainees, at the work place.

 GOVERNMENT DECISIONS / IMPORTANT GIDS**GOVERNMENT DECISIONS — Conduct & Office Decorum [appended below Rule 3 cluster]**

- ▶ **Communications from MPs / public / recognised associations:** must be **acknowledged within 15 days** of receipt, and **replied within the next 15 days** of acknowledgement. In case of delay, an interim reply must go within **one month** of receipt.
- ▶ **Lunch break:** lunch hour is **half-an-hour only**. Proper decorum is to be observed.
- ▶ Government servants must not play cards on the lawn or other open places inside or outside office buildings. Card-playing shall be confined to recreation rooms or places approved for the purpose.
- ▶ Indoor games shall **not be played in office buildings after 7:00 P.M.**, except on special occasions such as tournaments.

Rule 4 — Employment of Near Relatives of Government Servant in Companies or Firms

- (1) No Government servant shall use his position or influence directly or indirectly to secure employment for any member of his family in any company or firm.
- (2)(i) No **Group 'A' officer** shall, except with the previous sanction of the Government, permit his son, daughter or other dependant to accept employment in any company or firm with which he has official dealings or in any other company or firm having official dealings with the Government.
- (2)(ii) A Government servant shall, as soon as he becomes aware of the acceptance by a member of his family of an employment in any company or firm, intimate such acceptance to the prescribed authority and shall also intimate whether he has or has had any official dealings with that company or firm.
- (3) No Government servant shall in the discharge of his official duties deal with any matter or give or sanction any contract to any company or firm or any other person if any member of his family is employed in that company or firm.

GOVERNMENT DECISIONS / IMPORTANT GIDS

- ▶ **Meaning of "family" for Rule 4(1) and 4(3):** wife or husband, son or daughter, parents, brothers or sisters or any person related to any of them by blood or marriage — **whether or not they are dependent** on the Government servant [DoP&T O.M. dated 27.04.2011].
- ▶ Where conflict arises, the Government servant must **refer the matter to his official superior** and shall not deal with it himself; the matter shall be disposed of as per the directions of the authority to whom reference is made.

Rule 5 — Taking Part in Politics and Elections

- (1) No Government servant shall be a member of, or be otherwise associated with, any political party or any organisation which takes part in politics; nor shall he take part in, subscribe in aid of, or assist in any other manner, any political movement or activity.
- (2) It shall be the duty of every Government servant to endeavour to prevent any member of his family from taking part in, subscribing in aid of, or assisting in any other manner, any movement or activity which is, or tends directly or indirectly to be, subversive of the Government as by law established; and where a Government servant is unable to prevent such a member, he shall make a report to that effect to the Government.
- (3) If any question arises whether a party is a political party or whether any organisation takes part in politics or whether any movement or activity falls within the scope of sub-rule (2), the decision of the Government thereon shall be final.
- (4) No Government servant shall canvass or otherwise interfere with, or use his influence in connection with, or take part in, an election to any legislature or local authority:

Provisos to sub-rule (4)

- (i) a Government servant qualified to vote at such election may exercise his right to vote, but where he does so, he shall give no indication of the manner in which he proposes to vote or has voted;
- (ii) a Government servant shall not be deemed to have contravened the provisions of this sub-rule by reason only that he assists in the conduct of an election in the due performance of a duty imposed on him by or under any law for the time being in force.

GOVERNMENT DECISIONS / IMPORTANT GIDS

- ▶ Display of election symbols on private vehicles, residences or person of a Government servant is a contravention of Rule 5(4).
- ▶ Government servants must not preside over public meetings convened for political purposes, nor allow such meetings to be held in their residences.
- ▶ **Position on RSS and Jamaat-e-Islami — important update:**
- ▶ The MHA / DoP&T O.M.s dated 30.11.1966, 25.07.1970 and 28.10.1980 had directed that participation by Government servants in the activities of the **Rashtriya Swayamsevak Sangh (RSS)** and the **Jamaat-e-Islami** would attract disciplinary action under Rule 5 of the CCS (Conduct) Rules, 1964.
- ▶ **DoP&T O.M. No. 34013/1(S)/2016-Estt.(B) dated 9 July 2024** has reviewed those instructions and **removed the mention of RSS** from the OMs dated 30.11.1966, 25.07.1970 and 28.10.1980. Consequently, RSS is no longer placed on par with banned/political organisations for the purposes of Rule 5; participation by Government servants in its activities does not, by itself, attract disciplinary action.
- ▶ The same OMs, however, **continue to cover Jamaat-e-Islami**. The bar on Government servants associating with Jamaat-e-Islami subsists.
- ▶ Independently of the above, any organisation falling within Rule 6 — i.e., whose objects or activities are prejudicial to the sovereignty and integrity of India, public order or morality — remains out of bounds; and Rule 5 continues to prohibit association with **any political party** or organisation taking part in politics.

Rule 6 — Joining of Associations by Government Servants

No Government servant shall join, or continue to be a member of, an association the objects or activities of which are prejudicial to the interests of the sovereignty and integrity of India, or public order or morality.

Rule 7 — Demonstrations and Strikes

No Government servant shall —

- (i) engage himself or participate in any demonstration which is prejudicial to the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign States, public order, decency or morality, or which involves contempt of court, defamation or incitement to an offence;
- (ii) resort to or in any way abet any form of strike or coercion or physical duress in connection with any matter pertaining to his service or the service of any other Government servant.

"Strike" — what it includes [DoP&T GIDs]

- ▶ **Mass abstention from work without permission** (commonly described as "casual leave strike");
- ▶ Refusal to work overtime where such overtime is necessary in the public interest;
- ▶ Resort to practices or conduct likely to result in cessation or substantial retardation of work — including 'go slow', 'sit-down', 'pen-down', 'stay-in', 'token', sympathetic or any other similar strike;
- ▶ Absence from work for participation in a *bandh* or any similar movement.

Rule 8 — Connection with Press or Other Media

- (1) No Government servant shall, except with the previous sanction of the Government, own wholly or in part, or conduct or participate in the editing or management of, any newspaper or other periodical publication or electronic media.
- (2) Nothing in sub-rule (1) shall apply in case a Government servant in the bona fide discharge of his official duties publishes a book or participates in a public media.
- (3) A Government servant publishing a book or participating in a public media shall at all times make it clear that the views expressed by him are his own and not that of the Government.

GOVERNMENT DECISIONS / IMPORTANT GIDs

Time-limits beyond which permission may be assumed if the competent authority does not respond:

S. No.	Rule No.	Provision	Time period
1.	8(1)	Connection with Radio or Press	30 days
2.	13(4)	Gifts (from foreign dignitaries / report to Government)	30 days
3.	18(2)	Transaction in immovable property (sanction)	30 days
4.	18(3)	Report of transaction in movable property	30 days
5.	18-A	Transactions in immovable property outside India / with foreigners	60 days

Rule 9 — Criticism of Government

No Government servant shall, in any radio broadcast, telecast through any electronic media, or in any document published in his own name or anonymously, pseudonymously or in the name of any other person, or in any communication to the press, or in any public utterance, make any statement of fact or opinion —

- (i) which has the effect of an adverse criticism of any current or recent policy or action of the Central Government or a State Government;
- (ii) which is capable of embarrassing the relations between the Central Government and the Government of any State;
- (iii) which is capable of embarrassing the relations between the Central Government and the Government of any foreign State.

Proviso

Nothing in this rule shall apply to any statements made or views expressed by a Government servant in his official capacity or in the due performance of the duties assigned to him; nor to the bona fide expression of views by a Government servant as an office-bearer of a recognised service association for the purpose of safeguarding the conditions of service of its members or for securing an improvement thereof.



GOVERNMENT DECISIONS / IMPORTANT GUIDES

- Posting, sharing, liking or forwarding messages on social media (WhatsApp, Facebook, X/Twitter, etc.) that constitute adverse criticism of Government policy attracts Rule 9. Government servants must observe restraint and political neutrality online.

- ▶ Participation in TV debates touching upon policy of the Government requires prior sanction; views must be presented as personal and not as those of the Government.

Rule 10 — Evidence Before Committee or Any Other Authority

- (1) Save as provided in sub-rule (3), no Government servant shall, except with the previous sanction of the Government, give evidence in connection with any enquiry conducted by any person, committee or authority.
- (2) Where any sanction has been accorded under sub-rule (1), no Government servant giving such evidence shall criticise the policy or any action of the Central Government or of a State Government.
- (3) Nothing in this rule shall apply to —
 - (a) evidence given at an enquiry before an authority appointed by the Government, Parliament or a State Legislature; or
 - (b) evidence given in any judicial enquiry; or
 - (c) evidence given at any departmental enquiry ordered by authorities subordinate to the Government.

Rule 11 — Communication of Official Information

Every Government servant shall, in performance of his duties in good faith, communicate information to a person in accordance with the **Right to Information Act, 2005 (22 of 2005)** and the rules made thereunder.

Proviso

Provided that no Government servant shall, except in accordance with any general or special order of the Government or in the performance in good faith of the duties assigned to him, communicate, directly or indirectly, any official document or any part thereof, or classified information, to any Government servant or any other person to whom he is not authorised to communicate such document or classified information.

Rule 12 — Subscriptions

No Government servant shall, except with the previous sanction of the Government or of the prescribed authority, ask for or accept contributions to, or otherwise associate himself with the raising of, any funds or other collections in cash or in kind in pursuance of any object whatsoever.

GOVERNMENT DECISIONS / IMPORTANT GIDS

- ▶ Members of a recognised service union/association may freely collect subscriptions among themselves for the welfare activities of the union/association.
- ▶ **Flag Day collections** (for the welfare of ex-servicemen) are **exempted** from the prior-sanction requirement.
- ▶ Collections for Prime Minister's National Relief Fund and similar national funds notified by Government do not require prior sanction.

Rule 13 — Gifts

- (1) Save as provided in these rules, no Government servant shall accept, or permit any member of his family or any other person acting on his behalf to accept, any gift.

Explanation — the expression "**gift**" shall include free transport, boarding, lodging or other service or any other pecuniary advantage when provided by any person other than a near relative or personal friend having no official dealings with the Government servant.

Note (1) — A casual meal, lift or other social hospitality shall not be deemed to be a gift.

Note (2) — A Government servant shall avoid accepting lavish hospitality or frequent hospitality from any individual, industrial or commercial firms, organisations, etc., having official dealings with him.

Sub-rule (2) — Gifts on social/ceremonial occasions from near relatives / friends

On occasions such as **weddings, anniversaries, funerals or religious functions**, when the making of a gift is in conformity with the prevailing religious and social practice, a Government servant may accept gifts from his near relatives or from his personal friends having no official dealings with him, but shall make a report to the Government if the value of such gift exceeds —

Group of post	Reporting threshold
Group 'A'	₹ 25,000
Group 'B'	₹ 15,000
Group 'C'	₹ 7,500

LEGISLATIVE AMENDMENT NOTE

Substituted vide G.S.R. No. 531(E) dated 29.07.2019 — Ministry of Personnel, Public Grievances and Pensions (DoP&T). The 2019 substitution restored Group-wise differentiation and brought the figures into uniformity with the AIS (Conduct) Rules, 1968 and the Foreign Contribution (Acceptance or Retention of Gifts or Presentations) Rules, 2012.

Note — Earlier figures (under the CCS (Conduct) Amendment Rules, 2014 dated 27.11.2014) were also ₹25,000 / ₹15,000 / ₹7,500. Pre-2014 figures (₹7,000 / ₹4,000 / ₹2,000 / ₹1,000 for MTS) are obsolete and must not be quoted.

Sub-rule (3) — Gifts in cases other than sub-rule (2)

In any other case, a Government servant shall not accept any gift without the sanction of the Government if the value thereof exceeds —

Group of post	Sanction-required threshold
Group 'A' / Group 'B'	₹ 5,000
Group 'C'	₹ 2,000

Sub-rule (4) — Gifts from foreign dignitaries

A Government servant, being a member of the Indian delegation or otherwise, may **receive and retain gifts from foreign dignitaries** in accordance with the provisions of the **Foreign Contribution (Acceptance or Retention of Gifts or Presentations) Rules, 2012**, as amended from time to time.

Sub-rule (5) — Gifts from foreign firms with official dealings

A Government servant shall not accept any gifts from any foreign firm which is either contracting with the Government of India or is one with which the Government servant had, has or is likely to have official dealings.

GOVERNMENT DECISIONS / IMPORTANT GIDS

GOVERNMENT DECISIONS — Rule 13

- ▶ **Toshakhana:** Gifts received from foreign dignitaries are required to be deposited in the Toshakhana of the Ministry of External Affairs for valuation. Where the assessed value does not exceed the prescribed limit (presently ₹5,000), the gift is released to the recipient; otherwise, the recipient may purchase it from the Toshakhana by paying the difference.
- ▶ **Gifts from foreign firms:** no permission is normally granted (save in exceptional circumstances) for acceptance of gifts made by firms — whether foreign or indigenous — with whom the Government servant has had, has or is likely to have official dealings, directly or indirectly, by virtue of his official position.
- ▶ Lavish / frequent hospitality from any individual, industrial or commercial firm, etc., having official dealings, must be avoided [Note (2) below Rule 13(1)].
- ▶ Examples of items **not** treated as gift: casual meal, lift, ordinary social hospitality, complimentary items of nominal value such as calendars and diaries.

Rule 13-A — Dowry

No Government servant shall —

- (i) give or take or abet the giving or taking of dowry; or
- (ii) demand directly or indirectly, from the parent or guardian of a bride or bridegroom, as the case may be, any dowry.

Explanation — for the purposes of this rule, "**dowry**" has the same meaning as in the **Dowry Prohibition Act, 1961 (28 of 1961)**.

Rule 14 — Public Demonstrations in Honour of Government Servants

No Government servant shall, except with the previous sanction of the Government, receive any complimentary or valedictory address or accept any testimonial or attend any meeting or entertainment held in his honour, or in the honour of any other Government servant.

Exceptions — sanction not required for

- (i) a farewell entertainment of a substantially private and informal character held in honour of a Government servant or any other Government servant on the occasion of his retirement or transfer, or any person who has recently quit the service of any Government;
- (ii) the acceptance of simple and inexpensive entertainments arranged by public bodies or institutions.

Rule 15 — Private Trade or Employment

- (1) No Government servant shall, except with the previous sanction of the Government —
- (a) engage directly or indirectly in any trade or business; or
 - (b) negotiate for, or undertake, any other employment; or
 - (c) hold an elective office, or canvass for a candidate or candidates for an elective office, in any body, whether incorporated or not; or
 - (d) canvass in support of any business of insurance agency, commission agency, etc., owned or managed by any member of his family; or
 - (e) take part except in the discharge of his official duties, in the registration, promotion or management of any bank or other company registered or required to be registered, under the **Companies Act, 1956 (1 of 1956)**, or any other law for the time being in force.

Proviso to (1)(e)

Provided that no previous permission shall be necessary in cases where the Government servant participates in a programme produced or commissioned by Government media in his official capacity.

- (2) A Government servant may, without the previous sanction of the Government —
- (a) undertake honorary work of a social or charitable nature; or
 - (b) undertake occasional work of a literary, artistic or scientific character; or
 - (c) participate in sports activities as an amateur; or
 - (d) take part in the registration, promotion or management (not involving the holding of an elective office) of a literary, scientific or charitable society or of a club or similar organisation, the aims or objects of which relate to promotion of sports, cultural or recreational activities, registered under the Societies Registration Act, 1860 (21 of 1860); or

- (e) take part in the registration, promotion or management (not involving the holding of elective office) of a co-operative society substantially for the benefit of Government servants, registered under the Co-operative Societies Act, 1912 (2 of 1912).

Provisos to sub-rule (2)

- (i) he shall discontinue taking part in such activities, if so directed by the Government; and
- (ii) his official duties shall not suffer thereby, and he shall, within a period of one month of his taking part in such activity, report to the Government giving details of the nature of his participation.
- (3) Every Government servant shall report to the Government if any member of his family is engaged in a trade or business or owns or manages an insurance agency or commission agency.
- (4) Unless otherwise provided by general or special orders of the Government, no Government servant may accept any fee for any work done by him for any private or public body or any private person, without the sanction of the prescribed authority.



GOVERNMENT DECISIONS / IMPORTANT GIDS

GOVERNMENT DECISIONS — Rule 15

- ▶ **Part-time examinership** of question/answer papers set by recognised universities may be permitted, **once or twice for a few days in a year**.
- ▶ **Part-time lectureship** amounts to a regular remunerative occupation and attracts the requirement of sanction.
- ▶ **After-office-hour part-time job** is **not allowed** — it is treated as engagement in private employment requiring sanction, which is ordinarily refused.
- ▶ Writing of books, contribution of articles to newspapers/journals, lectures or talks on radio/TV — if of a literary, artistic or scientific character — fall under sub-rule (2)(b) and do not require previous sanction; however, the views expressed must be marked as personal.

Rule 15-A — Sub-letting and Vacation of Government Accommodation

- (1) No Government servant shall sub-let, lease or otherwise allow occupation by any other person of Government accommodation which has been allotted to him.

- (2) A Government servant shall, after the cancellation of his allotment of Government accommodation, vacate the same within the time-limit prescribed by the allotting authority.

GOVERNMENT DECISIONS / IMPORTANT GIDS

- ▶ Sub-letting of Government accommodation is a **grave misconduct**. Disciplinary proceedings may be initiated under **Rule 14 of the CCS (CCA) Rules, 1965**.
- ▶ Unauthorised occupation after cancellation/expiry attracts penal rent under the Public Premises (Eviction of Unauthorised Occupants) Act, 1971, in addition to disciplinary action.

Rule 16 — Investment, Lending and Borrowing

- (1) No Government servant shall speculate in any stock, share or other investment.

Proviso

Provided that nothing in this sub-rule shall apply to occasional investments made through stock brokers or other persons duly authorised and licensed or who have obtained a certificate of registration under the relevant law.

Explanation — Frequent purchase or sale or both, of shares, securities or other investments, shall be deemed to be **speculation** within the meaning of this sub-rule.

- (2) No Government servant shall make, or permit any member of his family or any person acting on his behalf to make, any investment which is likely to embarrass or influence him in the discharge of his official duties.
- (3) If any question arises whether any transaction is of the nature referred to in sub-rule (1) or (2), the decision of the Government thereon shall be final.
- (4) No Government servant shall, save in the ordinary course of business with a bank or a public limited company, either himself or through any member of his family or any other person acting on his behalf —
- (a) lend or borrow or deposit money, as a principal or an agent, to, or from, or with, any person or firm or private limited company within the local limits of his authority, or with whom he is likely to have official dealings, or otherwise place himself under any pecuniary obligation to such person or firm or private limited company; or

- (b) lend money to any person at interest or in a manner whereby return in money or in kind is charged or paid.

Proviso to (4)

Provided that a Government servant may give to, or accept from, **a relative or a personal friend, a purely temporary loan of a small amount free of interest**, or operate a credit account with a bona fide tradesman, or make an advance of pay to his private employee.

GOVERNMENT DECISIONS / IMPORTANT GUIDES

- ▶ Intimation to be given to the prescribed authority when the **total transaction in shares, securities, debentures, mutual funds, etc., in a calendar year exceeds six months' basic pay** of the Government servant (Group 'A'/'B' annually; Group 'C' as required).
- ▶ IPO/follow-on offer applications are treated as occasional investments; however, the **frequency test** under the Explanation is to be applied — repeated short-cycle trading falls within "speculation".
- ▶ Operating a Demat account merely for holding allotted shares is not speculation; however, frequent buy/sell transactions through the account attract Rule 16(1).

Rule 17 — Insolvency and Habitual Indebtedness

A Government servant shall so manage his private affairs as to avoid habitual indebtedness or insolvency. A Government servant against whom any legal proceeding is instituted for the recovery of any debt due from him or for adjudging him as an insolvent, shall forthwith report the full facts of the legal proceedings to the Government.

Rule 18 — Movable, Immovable and Valuable Property

Sub-rule (1) — Returns on first appointment and annual returns

- (1)(i) Every Government servant shall, on his first appointment to any service or post, submit a return of his assets and liabilities, in such form as may be prescribed by the Government, giving full particulars regarding —
- (a) the immovable property inherited by him, or owned or acquired by him or held by him on lease or mortgage, either in his own name or in the name of any member of his family or in the name of any other person;

- (b) shares, debentures and cash including bank deposits inherited by him or similarly owned, acquired, or held by him;
 - (c) other movable property inherited by him or similarly owned, acquired, or held by him; and
 - (d) debts and other liabilities incurred by him directly or indirectly.
- (1)(ii) Every Government servant belonging to any service or holding any post included in **Group 'A' and Group 'B'** shall submit an **annual return** regarding the immovable property inherited/owned/acquired/held on lease or mortgage, either in his own name or in the name of any member of his family or in the name of any other person.
- (2) No Government servant shall, except with the previous knowledge of the prescribed authority, acquire or dispose of any immovable property by lease, mortgage, purchase, sale, gift or otherwise, either in his own name or in the name of any member of his family.

Proviso

Provided that the previous sanction of the prescribed authority shall be obtained by the Government servant if any such transaction is with a person having official dealings with him.

- (3) Where a Government servant enters into a transaction in respect of movable property either in his own name or in the name of a member of his family, he shall, within one month from the date of such transaction, report the same to the prescribed authority, if the value of such property exceeds two months' basic pay of the Government servant.

Further provision — Where the expenditure on repairs and minor additions to an immovable property exceeds **two months' basic pay** of the Government servant, an intimation shall be necessary to the prescribed authority.

- (4) The Government or the prescribed authority may, at any time, by general or special order, require a Government servant to furnish a full and complete statement of such movable or immovable property held or acquired by him or on his behalf or by any member of his family, with the details of the means by which, or the source from which, such property was acquired.
- (5) The Government may exempt any category of Government servants belonging to Group 'C' from any of the provisions of this rule with the concurrence of the Cabinet Secretariat (Department of Personnel).

 Explanation I — "Movable property" includes

- ▶ Jewellery, insurance policies the annual premia of which exceeds **two months' basic pay** of the Government servant, shares, securities and debentures;
- ▶ All loans, whether secured or not, advanced or taken by the Government servant;
- ▶ Motor cars, motor cycles, horses or any other means of conveyance; and
- ▶ Refrigerators, radios, radiograms and television sets.

 Explanation II — "Prescribed Authority" means

- (a) The Government — for any Group 'A' post;
- (b) Head of Department — for any Group 'B' post;
- (c) Head of Office — for any Group 'C' post;
- (d) The parent Department or the Ministry — in respect of a Government servant on foreign service or on deputation to any other Ministry or other Government.

 GOVERNMENT DECISIONS / IMPORTANT GIDS**GOVERNMENT DECISIONS — Rule 18**

- ▶ **Annual Immovable Property Return (IPR)** by Group 'A' and Group 'B' officers shall be submitted **by 31st January every year**, reflecting the position as on 1st January (i.e., transactions effected during the immediately preceding calendar year).
- ▶ Non-submission within the prescribed date attracts **denial of Vigilance Clearance** and **non-consideration for promotion / empanelment** [DoP&T O.M. No. 11/7/2011-EO(PR) dated 04.04.2011].
- ▶ IPRs of **All India Service officers and Group 'A' Central Service officers** are placed in the **public domain** by 31st January of the year following the calendar year.
- ▶ **PRISM** (Property Related Information System) — an NIC-developed online module — is used for filing of IPRs by IAS / All India Service officers. Departmental online IPR portals are used by Group 'A' & 'B' officers of other services.
- ▶ "Same as last year" or "NO CHANGE" remarks in IPR are **not acceptable** — full details of the property must be furnished in the prescribed columns.
- ▶ **House-building / addition / minor construction** — a transaction in immovable property: intimation/sanction provisions of Rule 18 apply. Form I (report/application for permission) and Form II (post-completion report) are prescribed.

- ▶ Transactions through **Power of Attorney** — even if the Government servant is the donor or donee, the transaction attracts Rule 18; previous knowledge/sanction of the prescribed authority is required.

Rule 18-A — Restrictions in Relation to Acquisition and Disposal of Immovable Property Outside India and Transactions with Foreigners, etc.

No Government servant shall, except with the previous sanction of the prescribed authority —

- (a) acquire by purchase, or dispose of by sale, mortgage, gift or otherwise, either in his own name or in the name of any member of his family, any immovable property situated outside India;
- (b) enter into any transaction with any foreigner, foreign Government, foreign organisation or concern, for the acquisition by purchase or disposal of, by sale, mortgage, lease, gift or otherwise, either in his own name or in the name of any member of his family, any immovable property.

Deemed-permission time-limit

If no communication is received from the competent authority within **60 days** of the request, permission may be assumed to have been granted.

Rule 19 — Vindication of Acts and Character of Government Servant

- (1) No Government servant shall, except with the previous sanction of the Government, have recourse to any Court or to the Press for the vindication of any official act which has been the subject-matter of adverse criticism or an attack of a defamatory character.

Proviso (deemed permission)

If no such sanction is received by the Government servant within **a period of three months** from the date of receipt of his request by the Government, he shall be free to assume that the permission as sought for has been granted to him.

- (2) Nothing in this rule shall be deemed to prohibit a Government servant from vindicating his private character or any act done by him in his private capacity; and where any action

for vindicating his private character or any act done by him in private capacity is taken, the Government servant shall submit a report to the prescribed authority regarding such action.

Rule 20 — Canvassing of Non-Official or Other Outside Influence

No Government servant shall bring or attempt to bring any political or other outside influence to bear upon any superior authority to further his interests in respect of matters pertaining to his service under the Government.

Rule 21 — Restriction Regarding Marriage

- (1) No Government servant shall enter into, or contract, a marriage with a person having a spouse living; and
- (2) No Government servant, having a spouse living, shall enter into, or contract, a marriage with any person.

Proviso

Provided that the Central Government may permit a Government servant to enter into, or contract, any such marriage as is referred to in clause (1) or clause (2), if it is satisfied that —

- (a) such marriage is permissible under the personal law applicable to such Government servant and the other party to the marriage; and
- (b) there are other grounds for so doing.
- (3) A Government servant who has married or marries a person other than of **Indian nationality** shall forthwith intimate the fact to the Government.



GOVERNMENT DECISIONS / IMPORTANT GUIDES

- ▶ Plural marriages without prior permission attract Rule 21 and are good and sufficient reason for major penalty under the CCS (CCA) Rules, 1965 — even where personal law of the Government servant permits more than one spouse.
- ▶ Live-in relationship with a person having a spouse living is treated as conduct unbecoming of a Government servant under Rule 3(1)(iii) read with Rule 21.

Rule 22 — Consumption of Intoxicating Drinks and Drugs

A Government servant shall —

- (a) strictly abide by any law relating to intoxicating drinks or drugs in force in any area in which he may happen to be for the time being;
- (b) not be under the influence of any intoxicating drink or drug during the course of his duty, and shall also take due care that the performance of his duties at any time is not affected in any way by the influence of such drink or drug;
- (c) refrain from consuming any intoxicating drink or drug in a public place;
- (d) not appear in a public place in a state of intoxication;
- (e) not use any intoxicating drink or drug to excess.

Explanation — for the purposes of this rule, "**public place**" means any place or premises (including a conveyance) to which the public have, or are permitted to have, access, whether on payment or otherwise.

Rule 22-A — Prohibition Regarding Employment of Children Below 14 Years of Age

No Government servant shall employ to work any child below the age of **14 years**.



LEGISLATIVE AMENDMENT NOTE

Penal provisions — Child and Adolescent Labour (Prohibition & Regulation) Amendment Act, 2016 (with effect from 30.07.2016): imprisonment which shall not be less than **six months but may extend to two years**, or with fine which shall not be less than **₹20,000 but may extend to ₹50,000**, or with both. For repeat offences, imprisonment of not less than one year extendable to three years.

Rules 23–25 — Miscellaneous

Rule 23 — Interpretation

If any question arises relating to the interpretation of these rules, it shall be referred to the Government whose decision thereon shall be final.

Rule 24 — Delegation of Powers

The Government may, by general or special order, direct that any power exercisable by it or any Head of Department under these rules (except the powers under Rule 23 and this rule) shall, subject to such conditions, if any, as may be specified in the order, be exercisable also by such officer or authority as may be specified in the order.

Rule 25 — Repeal and Saving

Any rules corresponding to these rules in force immediately before the commencement of these rules and applicable to the Government servants to whom these rules apply, are hereby repealed:

Provided that any order made or action taken under the rules so repealed shall be deemed to have been made or taken under the corresponding provisions of these rules.

Consolidated Quick-Revision Sheet

A. Time-limits / Deemed-Permission Windows

Rule	Provision	Time-limit
3-C cluster	Acknowledgement of communication from MP/public/recognised association	15 days
3-C cluster	Reply after acknowledgement	15 days
3-C cluster	Interim reply in delay condition	One month from receipt
8(1)	Connection with Radio / Press — deemed permission	30 days
13(4)	Gifts (report to Government) — deemed permission	30 days
15(2)	Report of participation in honorary/literary/sports activity	Within one month
18(2)	Transaction in immovable property — deemed sanction	30 days
18(3)	Report of movable property transaction (value > 2 months' basic pay)	Within one month
18(1)(ii)	Annual Immovable Property Return (Group 'A' & 'B')	By 31st January
18-A	Property outside India / transactions with foreigners — deemed sanction	60 days
19(1)	Vindication of acts — deemed permission	Three months

B. Money-Value Thresholds (current figures)

Rule	Threshold	Amount
1 (proviso)	Pay ceiling for exemption from listed rules in identified establishments	₹500 p.m. (unchanged)
13(2)	Reporting threshold — gifts on social occasions — Group 'A'	₹25,000
13(2)	Reporting threshold — gifts on social occasions — Group 'B'	₹15,000
13(2)	Reporting threshold — gifts on social occasions — Group 'C'	₹7,500
13(3)	Sanction-required threshold — any other case — Group 'A'/'B'	₹5,000
13(3)	Sanction-required threshold — any other case — Group 'C'	₹2,000

Rule	Threshold	Amount
16	Intimation threshold for shares/securities trade in a calendar year	Six months' basic pay
18(3)	Movable property transaction reporting threshold	Two months' basic pay
18(1) Expl.	Insurance policy — annual premium for inclusion as movable property	Two months' basic pay
18(3) further	Repairs/minor additions to immovable property — intimation threshold	Two months' basic pay

C. Prescribed Authority under Rule 18

Post	Prescribed Authority
Group 'A'	The Government
Group 'B'	Head of Department
Group 'C'	Head of Office
Officer on foreign service / deputation	Parent Department or Ministry

D. Key Statutory Linkages

Provision in CCS (Conduct) Rules	Allied Act / Rule
Rule 3-C — Sexual Harassment	Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013
Rule 11 — Communication of official information	Right to Information Act, 2005 (22 of 2005)
Rule 13-A — Dowry	Dowry Prohibition Act, 1961 (28 of 1961)
Rule 13(4) — Gifts from foreign dignitaries	Foreign Contribution (Acceptance or Retention of Gifts or Presentations) Rules, 2012
Rule 15(1)(e) — Companies	Companies Act, 1956 (1 of 1956)
Rule 15-A — Sub-letting	Rule 14 of CCS (CCA) Rules, 1965; Public Premises (Eviction) Act, 1971
Rule 22-A — Child labour	Child and Adolescent Labour (Prohibition & Regulation) Act, 1986, as amended in 2016

E. Major Amendments — At-a-Glance

Amending Notification	Key Change
GSR 823(E) dated 19.11.2014 [Second Amendment Rules, 2014]	Expansion of Rule 3-C (definitions of "sexual harassment" and "work place").
Notification dated 27.11.2014 [Third Amendment Rules, 2014]	Insertion of clauses (iv) to (xxi) in Rule 3(1) — duties on supremacy of Constitution, ethical standards, political neutrality, merit, accountability, professionalism, etc.
Amendment Rules, 2014 (Rule 13)	Gift limits revised to ₹25,000 / ₹15,000 / ₹7,500 (Groups A/B/C).
GSR 531(E) dated 29.07.2019	Re-substitution of Rule 13(2) clauses to bring uniformity with AIS (Conduct) Rules, 1968 and FC (Gifts) Rules, 2012.
Child Labour Amendment Act, 2016 (effect on Rule 22-A penal limb)	Penalty enhanced to imprisonment 6 months–2 years and/or fine ₹20,000–₹50,000.

Examination Pointers — Most-Asked Trip-Up Points

Watch these traps in objective questions

- ▶ **"Commencement"**: the rules came into force **at once from 12 December 1964** — not 12.12.1965 (which is the CCS (CCA) Rules).
- ▶ Rule 1 partial-exemption pay ceiling = ₹500 p.m. (unchanged figure).
- ▶ Number of duties under Rule 3(1) after the Third Amendment Rules, 2014 = **21 clauses** — not 3 (which is the pre-2014 position).
- ▶ Gift limits under Rule 13(2): **₹25,000 / ₹15,000 / ₹7,500** for Groups A / B / C respectively — these are **not** combined for Groups A+B.
- ▶ Companies Act under Rule 15(1)(e) = **Companies Act, 1956** — the principal rule has **not** been updated to the Companies Act, 2013.
- ▶ Annual IPR submission date = **31st January** — applicable to Group 'A' and Group 'B' (not Group 'C').
- ▶ Deemed-permission window for property outside India / dealings with foreigners (Rule 18-A) = **60 days** — all other property-related windows are 30 days.
- ▶ Deemed-permission window under Rule 19 (vindication of acts) = **three months**.
- ▶ Indoor games prohibited in office buildings after **7:00 P.M.** — except on special occasions such as tournaments.
- ▶ Lunch hour decorum: **half-an-hour only**.
- ▶ Sub-letting of Government accommodation = **grave misconduct** inviting disciplinary action under Rule 14 of CCS (CCA) Rules, 1965.
- ▶ Child labour penalty cited in post-2016 study material: **6 months–2 years imprisonment and/or ₹20,000–₹50,000 fine** — pre-2016 ceilings are outdated.

— End of CCS (Conduct) Rules, 1964 — Dak Guru Study Notes —

Prepared by Dak Guru editorial team for LDCE IP / PS Gr. 'B' aspirants.

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